Electronically Filed
Intermediate Court of Appeals
CAAP-26-0000625
09-OCT-2026
04:27 PM
Dkt. 13 MOT

CAAP-26-000625

IN THE INTERMEDIATE COURT OF APPEALS

STATE OF HAWAII

ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawai'i nonprofit corporation, by its Board of Directors Appellee, vs. NIKODEM PIKOR, Appellant.	Civil No. 1RC19-1-0003776 APPEALED FROM : (1) FINDINGS OF FACT, CONCLUSIONS OF LAW, AND ORDER GRANTED PLAINTIFF/COUNTERCLAIM DEFENDANT'S MOTIONS FOR DIRECTED VERDICT; (2) ORDER GRANTING IN PART AND DENYING IN PART PLAINTIFF AND COUNSERCLAIM DEFENDANT ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC. MOTION FOR ATTORNEYS' FEES AND COSTS; and (3) JUDGMENT [Caption Continued on Next Page]

NIKODEM PIKOR Appellant, vs. ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawai'i nonprofit corporation, by its Board of Directors Appellee.
NIKODEM PIKOR, Appellant, v. THYSSENKRUPP ELEVATOR CORPORATION, Foreign Profit Corporation, Appellee.

REVERE & ASSOCIATES, LLLC'S MOTION FOR LEAVE TO WITHDRAW AS COUNSEL FOR APPELLANT NIKODEM PIKOR

DECLARATION OF COUNSEL

EXHIBIT "1"

CERTIFICATE OF SERVICE

REVERE & ASSOCIATES
A Limited Liability Law Company

TERRANCE M. REVERE 5857
AMANDA L. DUTCHER 9749
Pali Palms Plaza
970 North Kalaheo Street, Suite A301
Kailua, Hawaii 96734
Telephone No: (808) 791-9550
Facsimile No: (808) 791-9551

Withdrawing Attorneys for Appellant
NIKODEM PIKOR

CAAP-26-000625

IN THE INTERMEDIATE COURT OF APPEALS

STATE OF HAWAII

ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawai'i nonprofit corporation, by its Board of Directors Appellee, vs. NIKODEM PIKOR, Appellant.	Civil No. 1RC19-1-0003776 APPEALED FROM : (1) FINDINGS OF FACT, CONCLUSIONS OF LAW, AND ORDER GRANTED PLAINTIFF/COUNTERCLAIM DEFENDANT'S MOTIONS FOR DIRECTED VERDICT; (2) ORDER GRANTING IN PART AND DENYING IN PART PLAINTIFF AND COUNSERCLAIM DEFENDANT ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC. MOTION FOR ATTORNEYS' FEES AND COSTS; and (3) JUDGMENT [Caption Continued on Next Page]
NIKODEM PIKOR Appellant, vs. ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawai'i nonprofit corporation, by its Board of Directors Appellee.	

NIKODEM PIKOR,

Appellant,

v.

THYSSENKRUPP ELEVATOR CORPORATION, Foreign Profit Corporation,

Appellee.

REVERE & ASSOCIATES, LLLC'S MOTION FOR LEAVE TO WITHDRAW AS COUNSEL FOR APPELLANT NIKODEM PIKOR

Withdrawing Attorneys, TERRANCE M. REVERE and AMANDA L. DUTCHER, hereby move for an Order allowing them to Withdraw as Counsel for Appellant NIKODEM PIKOR.

This motion is made pursuant to Rules 27 and 50 of the *Hawaii Rules of Appellate Procedure* and is based upon the Declaration of Counsel and exhibit attached hereto, the records and files herein, and any evidence which may be adduced by the Justices, all of which are incorporated herein by reference.

DATED: Honolulu, Hawaii, October 09, 2026.

/s/ *Amanda L. Dutcher*
TERRANCE M. REVERE
AMANDA L. DUTCHER
Attorneys for Appellant
NIKODEM PIKOR

CAAP-26-000625

IN THE INTERMEDIATE COURT OF APPEALS

STATE OF HAWAII

ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawai'i nonprofit corporation, by its Board of Directors Appellee, vs. NIKODEM PIKOR, Appellant.	Civil No. 1RC19-1-0003776 APPEALED FROM : (1) FINDINGS OF FACT, CONCLUSIONS OF LAW, AND ORDER GRANTED PLAINTIFF/COUNTERCLAIM DEFENDANT'S MOTIONS FOR DIRECTED VERDICT; (2) ORDER GRANTING IN PART AND DENYING IN PART PLAINTIFF AND COUNSERCLAIM DEFENDANT ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC. MOTION FOR ATTORNEYS' FEES AND COSTS; and (3) JUDGMENT [Caption Continued on Next Page]

NIKODEM PIKOR Appellant, vs. ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawai'i nonprofit corporation, by its Board of Directors Appellee.
NIKODEM PIKOR, Appellant, v. THYSSENKRUPP ELEVATOR CORPORATION, Foreign Profit Corporation, Appellee.

DECLARATION OF COUNSEL

I, AMANDA L. DUTCHER, do hereby declare under penalty of law that the following is true and correct to the best of my knowledge and belief:

1. I have personal knowledge of the statements made in this Declaration, and I am competent to testify regarding these statements.

2. *Hawaii Rules of Professional Conduct,* Rule 1.16(a)(3) provides in relevant part that a "lawyer may withdraw from representing a client if: …(3) the lawyer is discharged."

3. *Hawaii Rules of Professional Conduct,* Rule 1.16(b)(7) also provides in relevant part that "a lawyer may withdraw from representing a client if … (7) other good

cause for withdrawal exists."

4. On September 6, 2026, Mr. Pikor informed me on a phone call that he was terminating our attorney-client relationship.

5. Following our call, I emailed Mr. Pikor and confirmed that he was ending our attorney-client relationship and had terminated us as his counsel in this matter.

6. The relationship between Mr. Pikor and our firm has become irreconcilable and good cause exists to allow Revere & Associates, LLLP to withdraw as Mr. Pikor's counsel.

7. On September 11, 2026, withdrawing attorneys filed their Motion for Leave to Withdraw as Counsel for Defendant and Counterclaim/Third-Party Plaintiff Nikodem Pikor.

8. On October 7, 2026, the lower court entered its Order Granting Revere & Associates, LLL's Motion for Leave to Withdraw as Counsel for Defendant and Counterclaim/Third-Party Plaintiff Nikodem Pikor [Dkt. 484]. Attached hereto as Exhibit "1" is a true and correct copy of the lower court's ruling.

9. Mr. Pikor contact information is:

Address: 2825 S. King St. Suite #2701, Honolulu HI, 96826
Email: niko@mojehawaje.pl
Phone: (808) 222-9422
Mobile Phone: (808) 222-9422

I, AMANDA L. DUTCHER, declare under penalty of law that the foregoing is true and correct.

DATED: Honolulu, Hawaii, October 09, 2026. .

/s/ Amanda L. Dutcher
AMANDA L. DUTCHER

NIKODEM PIKOR Counterclaim Plaintiff, vs. ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawai'i nonprofit corporation, by its Board of Directors, Counterclaim Defendant.
NIKODEM PIKOR, Third-Party Plaintiff, v. THYSSENKRUPP ELEVATOR CORPORATION, Foreign Profit Corporation, Third-Party Defendant.

Electronically Filed
FIRST CIRCUIT
1RC191003776
07-OCT-2026
08:09 AM
Dkt. 484 ORDG

ORDER GRANTING MOTION FOR LEAVE TO WITHDRAW AS COUNSEL FOR DEFENDANT AND COUNTERCLAIM/THIRD-PARTY PLAINTIFF NIKODEM PIKOR

On September 11, 2026, Withdrawing Attorneys Revere & Associates, LLLC filed its Motion for Leave to Withdraw as Counsel for Defendant and Counterclaim/Third-Party Plaintiff Nikodem Pikor as Dkt. No. 461 ("Motion to Withdraw").

On September 28, 2026, the Motion came for hearing before The Honorable Timothy Ho. Amanda Dutcher, Esq. appeared remotely for Defendant and Counterclaim/Third-Party Plaintiff NIKODEM PIKOR, Yun W. Kim, Esq. appeared remotely for Plaintiff ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., and James R. Ferguson, Esq. appeared remotely for Counterclaim Defendant ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC.

EXHIBIT 1

I do hereby certify that the foregoing is a full, true and correct copy of the official court record of the Courts of the State of Hawai`i.
Dated at: Honolulu, Hawai`i 07-OCT-2026, /s/ Lori Ann Okita, Clerk of the First Judicial Circuit, State of Hawai`i

The Court having reviewed and considered Withdrawing Attorneys Revere & Associates, LLLC's Motion to Withdraw and good cause appearing therefore;

IT IS HEREBY ORDERED THAT Revere & Associates, LLLC's Motion to Withdraw as Counsel for Defendant and Counterclaim/Third-Party Plaintiff Nikodem Pikor [DKT. 461], filed September 11, 2026, is hereby GRANTED.

DATED: Honolulu, Hawai`i, OCT 07 2026

TIMOTHY E. HO

JUDGE OF THE ABOVE-ENTITLED COURT

APPROVED AS TO FORM:

/s/ Yun W. Kim

GLENN S. HORIO, ESQ.
YUN W. KIM, ESQ.
Attorneys for Plaintiff
ASSOCIATION OF APARTMENT OWNERS
OF MARINE SURF WAIKIKI, INC.

/s/ James R. Ferguson

JAMES R. FERGUSON, ESQ.
Attorney for Counterclaim Defendant
ASSOCIATION OF APARTMENT OWNERS
OF MARINE SURF WAIKIKI, INC.

IN THE DISTRICT COURT OF THE FIRST CIRCUIT

HONOLULU DIVISION

STATE OF HAWAII

ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawai'i nonprofit corporation, by its Board of Directors Plaintiff, vs. NIKODEM PIKOR, Defendant.	Civil No. 1RC19-1-003776 CERTIFICATE OF SERVICE
NIKODEM PIKOR Counterclaim Plaintiff, vs. ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawai'i nonprofit corporation, by its Board of Directors, Counterclaim Defendant.	
NIKODEM PIKOR, Third-Party Plaintiff, v. THYSSENKRUPP ELEVATOR CORPORATION, Foreign Profit Corporation, Third-Party Defendant.	

CERTIFICATE OF SERVICE

The undersigned hereby certifies that on this date, a true and correct copy of the foregoing document was duly served upon the following individuals via JEFS to their last known address below:

GLENN S. HORIO, ESQ. gh@dkpvlaw.com
YUN W. KIM, ESQ.
Attorneys for Plaintiff
ASSOCIATION OF APARTMENT OWNERS OF
MARINE SURF WAIKIKI, INC.

JAMES R. FERGUSON, ESQ. jferguson@rlhlaw.com
Attorney for Counterclaim Defendant
ASSOCIATION OF APARTMENT OWNERS OF
MARINE SURF WAIKIKI, INC.

DATED: Honolulu, Hawaii, September 30, 2026.

/s/ Amanda L. Dutcher
TERRANCE M. REVERE
AMANDA L. DUTCHER
Withdrawing Attorneys for Defendant and
Counterclaim/Third-Party Plaintiff
NIKODEM PIKOR

NOTICE OF ELECTRONIC FILING

Electronically Filed
FIRST CIRCUIT
1RC191003776
07-OCT-2026
08:09 AM
Dkt. 485 NEF

An electronic filing was submitted in Case Number 1RC191003776. You may review the filing through the Judiciary Electronic Filing System. Please monitor your email for future notifications.

Case ID: 1RC191003776
Title: ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawaii nonprofit corporation, by its Board of Directors VS NIKODEM PIKOR
Filing Date / Time: WEDNESDAY, OCTOBER 7, 2026 08:09:05 AM
Filing Parties:
Case Type: Regular Claim
Lead Document(s):
Supporting Document(s): 484-Order Granted
Document Name: 484-Order Granting Motion for Leave to Withdraw as Counsel for Defendant and Counterclaim/Third-Party Plaintiff Nikodem Pikor -- Granted by Judge T.Ho/JY/KR --

If the filing noted above includes a document, this Notice of Electronic Filing is service of the document under the Hawai`i Electronic Filing and Service Rules.

This notification is being electronically mailed to:
Yun Wilson Kim *(yk@dkpvlaw.com)*
Barron T Oda *(boda@rlhlaw.com)*
Terrance M. Revere *(terry@revereandassociates.com)*
Amanda Lee Dutcher *(amanda@revereandassociates.com)*
James Richard Ferguson *(jferguson@rlhlaw.com)*
April Luria *(aluria@rlhlaw.com)*
Glenn S. Horio *(gh@dkpvlaw.com)*

The following parties need to be conventionally served:
Bank of Hawaii Legal Division

I do hereby certify that the foregoing is a full, true and correct copy of the official court record of the Courts of the State of Hawai`i.
Dated at: Honolulu, Hawai`i 07-OCT-2026, /s/ Clerk of the Court, Clerk of the First Judicial Circuit, State of Hawai`i

CAAP-26-000625

IN THE INTERMEDIATE COURT OF APPEALS

STATE OF HAWAII

ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawai'i nonprofit corporation, by its Board of Directors Appellee, vs. NIKODEM PIKOR, Appellant.	Civil No. 1RC19-1-0003776 APPEALED FROM : (1) FINDINGS OF FACT, CONCLUSIONS OF LAW, AND ORDER GRANTED PLAINTIFF/COUNTERCLAIM DEFENDANT'S MOTIONS FOR DIRECTED VERDICT; (2) ORDER GRANTING IN PART AND DENYING IN PART PLAINTIFF AND COUNSERCLAIM DEFENDANT ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC. MOTION FOR ATTORNEYS' FEES AND COSTS; and (3) JUDGMENT [Caption Continued on Next Page]

NIKODEM PIKOR

Appellant,

vs.

ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawai'i nonprofit corporation, by its Board of Directors

Appellee.

NIKODEM PIKOR,

Appellant,

v.

THYSSENKRUPP ELEVATOR CORPORATION, Foreign Profit Corporation,

Appellee.

CERTIFICATE OF SERVICE

The undersigned hereby certifies that on this date, a true and correct copy of the foregoing was served upon the following individuals via JEFS as indicated below:

GLENN S. HORIO, ESQ. gh@dkpvlaw.com
Attorney for Appellee
ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC.

JAMES R. FERGUSON, ESQ. jferguson@rlhlaw.com
Attorney for Appellee

ASSOCIATION OF APARTMENT
OWNERS OF MARINE SURF WAIKIKI, INC.

DATED: Honolulu, Hawaii, October 09, 2026.

/s/ Amanda L. Dutcher
TERRANCE M. REVERE
AMANDA L. DUTCHER
Withdrawing Attorneys for Appellant
NIKODEM PIKOR